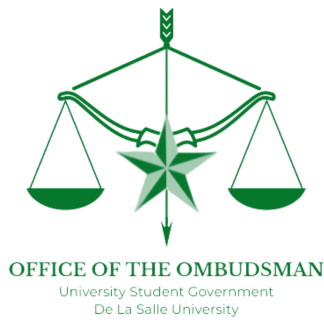




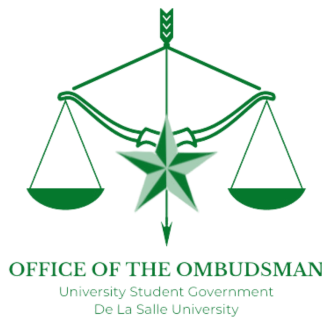
KRISTINE CUNANAN, as the Overall Deputy Ombudsman,
Office of the Ombudsman, University Student Government, De
La Salle University, *complainant*,

versus

JAN AURA DENISE S. DULCE, as Officer-in-Charge College
President of the Business College Government of the Ramon V.
del Rosario College of Business, **PRINCESS CALAQUIAN**, as
Officer-in-Charge BLAZE2026 Batch Representative, **SOFIA DE
MESA**, as Officer-in-Charge BLAZE2027 Batch Representative,
HANNAH ALTHEA SUAN, as Officer-in-Charge BLAZE2028
Batch Representative, and **FJORD GALLEGOS**, as
Officer-in-Charge BLAZE2028 Batch Legislator, all of the
Business College Government, Ramon V. del Rosario College of
Business, De La Salle University, *respondents*.

OMB-2026-01-002

For: Reply pursuant to the
investigation on Behavior
that Undermines the Integrity
of the USG, Anticipation of
Duties of a USG Office, and
Usurpation of Official
Function



X-----X

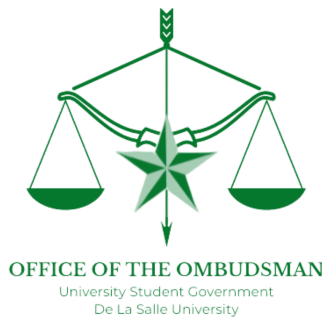
ORDER

This pertains to the investigation motu proprio conducted by the Overall Deputy Ombudsman pursuant to Article VI, Sections 54, 62.1, and 62.11 of the USG Constitution and Book I, Title I, Article 4 of the Omnibus Code of Violations, against Jan Aura Denise S. Dulce ("Dulce"), Officer-in-Charge ("OIC") College President of the Business College Government of the Ramon V. del Rosario College of Business ("BCG"); Princess Calaquian ("Calaquian"), OIC BLAZE2026 Batch Representative; Sofia De Mesa ("De Mesa"), OIC BLAZE2027 Batch Representative; Hannah Althea Suan ("Suan"), OIC BLAZE2028 Batch Representative; and Fjord Gallegos ("Gallegos"), OIC BLAZE2028 Batch Legislator of the BCG, for Behavior that Undermines the Integrity of the USG and Usurpation of Official Function pursuant to Book IV, Title VII, Articles 1 and 2, Section 4 of the Omnibus Code of Violations.

At the core of the controversy are the designations of Dulce as OIC College President, of Calaquian, De Mesa, and Suan as OIC Batch Representatives, and of Gallegos as OIC Batch Legislator of the BCG. These positions are elective in nature pursuant to Article XV, Sections 143 and 145 of the USG Constitution and, as such, shall not be filled by appointment until the conclusion of the immediately succeeding Special Elections pursuant to Article XVI, Section 151 of the USG Constitution.

The Antecedents

On August 3, 2026, the DLSU Commission on Elections ("COMELEC") publicly announced the official results of the 2026 General Elections ("GE2026") on its Official Facebook Page, wherein no candidate was proclaimed for the positions of College President, BLAZE2026, BLAZE2027, and BLAZE2028 Batch Representatives, and BLAZE2028 Batch Legislator of the BCG (See Appendix A).



On 10 August 2026, the DLSU-USG Commission on Elections ("COMELEC") issued COMELEC Resolution No. T3-11, s. 2025–2026. The Resolution officially declared a Failure of Elections for three (3) positions in the Manila Campus due to the failure to achieve the required fifty percent plus one (50% + 1) voter turnout, pursuant to Article VIII, Section 29.2 of the Omnibus Election Code. It further declared that forty-five (45) positions in the Manila Campus and ten (10) positions in the Laguna Campus remain unfilled, among which are the positions of College President, BLAZE2026, BLAZE2027, and BLAZE2028 Batch Representatives, and BLAZE2028 Batch Legislator of the BCG. In light thereof, the COMELEC called for a Special Election during Term 1 of A.Y. 2026–2027 to address such vacancies and directed that incumbent elected officers shall continue their term of office in a holdover capacity until new officers are proclaimed (See Appendix B).

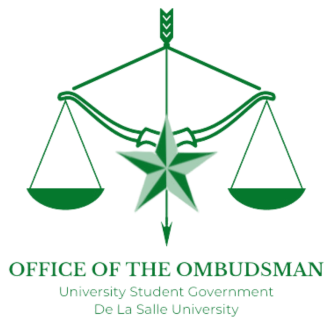
With regard to the Special Elections, which the COMELEC calls within the first trimester of the academic year for vacancies arising from a failure of elections, the COMELEC is conducting the filing of Certificates of Candidacy from 28 September 2026 to 23 October 2026 (See Appendix C). The Special Elections have therefore yet to conclude.

On 29 September 2026, College President Cedric Alfonso R. Perez ("Perez") tendered his resignation letter addressed to Ms. Mielson Nelle D. Miranda as the President of University Student Government, Mr. Christian Danielle D. Olegario as the Chief Magistrate, University Student Government Judiciary, Ms. Aleia Sandra P. Silvestre as the Chief Legislator, University Student Government Legislative Assembly and Ms. Maria Elisha Kaye B. Nazario as Executive Secretary, University Student Government (See Appendix D).

For the resignation of Perez to take effect, it must rest on valid grounds and must be approved by the Legislative Assembly ("LA"), as specifically provided under Article XVI, Section 167 of the USG Constitution –

"Section 167. An officer holding an elective position may only be allowed to resign on valid grounds as may be provided by law, subject to the approval of the LA. "

The office of College President is one such elective position. Accordingly, the mere tender of a resignation letter does not, by itself, render the office vacant.



According to Ms. Aleia Sandra P. Silvestre, then Chief Legislator of the University Student Government Legislative Assembly, the LA has yet to act upon the resignation of Perez. His resignation is therefore not yet in effect, as the mere tender of a resignation letter produces no legal consequence absent the approval of the LA, and Perez retains both the title and the responsibilities of College President of the BCG.

Given that there is an incumbent College President of the Ramon V. del Rosario College of Business College Government, namely Cedric Alfonso R. Perez ("Perez"), Perez shall function in a holdover capacity until the conclusion of the Special Elections, as specifically provided under Article XV, Section 148 of the USG Constitution –

"Section 148. In cases of a failure of elections, the incumbent elected officers shall continue their term of office until new officers are proclaimed through Special Elections."

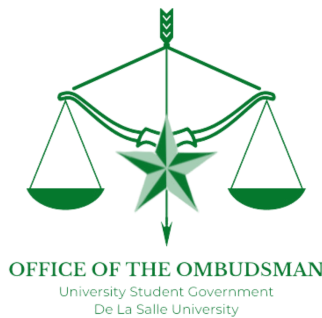
Such continuation constitutes an administrative holdover, as specifically provided under Book IV, Title VII, Article 2, Section 2.1 of the Omnibus Code of Violations –

"Section 2.1. Administrative Holdover, defined — This refers to a USG official continuing to perform duties beyond their official term to ensure continuity until a successor is elected or appointed, thus preventing disruption in the functions of the student government."

Moreover, the law expressly prohibits any appointment to a position left vacant after the General Elections until the conclusion of the immediately succeeding Special Elections, as specifically provided under Article XVI, Section 151 of the USG Constitution –

"Section 151. If a position is left vacant after the General Elections, there shall be no appointments until the conclusion of the immediately succeeding Special Elections."

As to the designation of Dulce as OIC College President, two conflicting points have emerged. On one hand, Ms. Naomi Rose Anne Conti ("Conti"), BLAZE2027 Batch Legislator, stated that



Dulce was appointed through the College Legislative Board ("CLB") of the BCG. On the other hand, Ms. Aleia Sandra P. Silvestre, then Chief Legislator of the University Student Government Legislative Assembly, stated that when she asked Conti, as one of the Legislators of the BCG, about the matter, Conti said she was not aware of any such appointment (See Appendix E).

Moreover, the designation of an OIC finds no application to elective positions. The Administrative Code limits the power of temporary designation to offices whose appointment is vested in the President or the Executive Board by law, as specifically provided under Article X, Section 48.1.1 of the Administrative Code of 2025 –

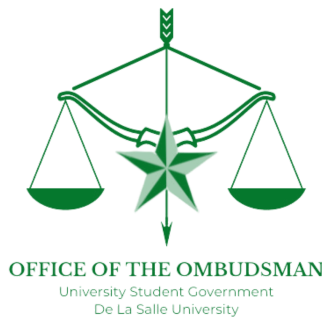
"Section 48.1.1. The President may temporarily designate an officer already in government service or any other competent person to perform the functions of an office in the executive branch, appointment to which is vested in them or the Executive Board by law, when:"

Section 48.1.1.1. The officer regularly appointed to the office is unable to perform their duties by reason of illness, absence, or any other cause; or

Section 48.1.1.2. There exists a vacancy. (underscoring supplied)."

The positions of College President and Batch Representative are not offices whose appointment is vested in the President or the Executive Board. They are elective positions, filled through election or, upon a vacancy, through nomination and confirmation by the bodies designated by law. Where an elective office is to be filled by appointment, the Administrative Code requires that such appointment be in line with the qualifications set in the Constitution and the Election Code and be confirmed by the Legislative Assembly. The designation of an OIC is therefore confined to appointive offices and cannot serve as a means of filling the elective positions of College President and Batch Representative of the BCG.

As to the positions of the BLAZE2026, BLAZE2027, and BLAZE2028 Batch Representatives of the BCG, this investigation seeks to determine the manner by which Calaquian, De Mesa, and Suan were placed in their respective positions. The law provides only specific means by which



the office of Batch Representative may be filled. First, the office is filled by election, as specifically provided under Article XV, Section 145 of the USG Constitution –

"Section 145. The Batch Representatives and Legislators shall be voted into office by the members of their respective batches under their respective colleges. (underscoring supplied)."

Second, upon a vacancy existing after the conclusion of the Special Elections, the office is filled through nomination by the College President, as specifically provided under Article XVI, Section 161 of the USG Constitution –

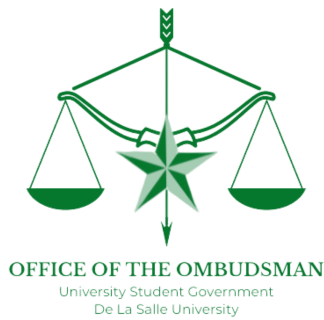
"Section 161. In case of incapacity in the discharge of duties, removal from office, vacancy of position after the conclusion of the Special Elections, or resignation of a Batch Representative, the College President shall nominate an officer from the same batch as replacement, while maintaining their functions and powers in their original position until their confirmation. (underscoring supplied)."

Such nomination is subject to confirmation by the CLB, as specifically provided under Article V, Section 14.2.1 of the College Government Code –

"Section 14.2.1. The CLB shall confirm the appointment of the Batch Representatives. (underscoring supplied)."

Third, where a sitting Batch Representative is temporarily incapacitated, another officer may act in their stead, as specifically provided under Article V, Section 16.1 of the College Government Code –

"Section 16.1. When the Batch Representative is temporarily incapacitated to perform their duties for physical or legal reasons such as, but not limited to, leave of absence, travel locally or abroad, or suspension from office, the Chief of Staff, an equivalent officer, or any competent person designated by the College President shall automatically take over as the acting Batch Representative. (underscoring supplied)."



None of these means appears to have been observed in the designation of Calaquian, De Mesa, and Suan as OIC Batch Representatives, particularly as no appointment may be made to a position left vacant after the General Elections until the conclusion of the immediately succeeding Special Elections.

As to the position of the BLAZE2028 Batch Legislator, the records show that on 14 September 2026, the details of Gallegos were entered into the DLSU USG Officers Database 2026–2027, identifying him as the BLAZE2028 Batch Legislator of the BCG. On 18 September 2026, Atlas Migel Alviar ("Alviar"), the incumbent Ombudsman, inquired with Ms. Aleia Sandra P. Silvestre, then Chief Legislator of the University Student Government Legislative Assembly, regarding the status of Gallegos. Ms. Silvestre stated that she had neither confirmed nor recognized Gallegos as BLAZE2028 Batch Legislator. On 19 September 2026, one day after the inquiry of Ombudsman Alviar, Dulce removed the details of Gallegos as BLAZE2028 Batch Legislator from the DLSU USG Officers Database 2026–2027.

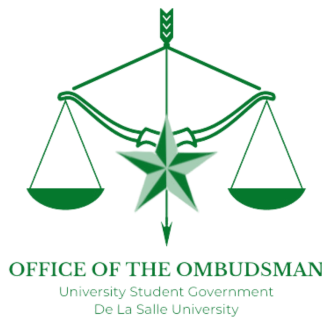
The position of Batch Legislator is elective in nature, filled by the votes of the members of the respective batch, as specifically provided under Article XV, Section 145 of the USG Constitution

—

"Section 145. The Batch Representatives and Legislators shall be voted into office by the members of their respective batches under their respective colleges. (underscoring supplied)."

Should the position become vacant after the conclusion of the Special Elections, the law prescribes a specific procedure for filling it. The College President nominates an officer from the same batch, as specifically provided under Article XVI, Section 162 of the USG Constitution –

"Section 162. In case of incapacity in the discharge of duties, removal from office, vacancy of position after the conclusion of the Special Elections, or resignation of a Batch Legislator, the College President shall nominate an officer from the same batch. (underscoring supplied)."



The nomination is then decided upon by the Legislative Assembly ("LA"), as specifically provided under Article XVI, Section 164 of the USG Constitution –

"Section 164. The LA shall decide on nominations for members of the Executive Board, College Presidents, and Legislators. x x x (underscoring supplied)."

This is reiterated under Article V, Section 14.3.1 of the College Government Code –

"Section 14.3.1. The Legislative Assembly shall confirm the appointment of the Batch Legislators. (underscoring supplied)."

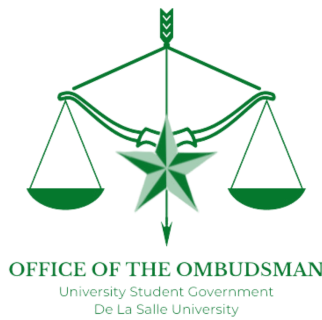
Even this procedure, however, remains unavailable while the Special Elections are ongoing, as no appointment may be made to a position left vacant after the General Elections until the conclusion of the immediately succeeding Special Elections.

Neither may the position of Batch Legislator be held by an OIC or in a temporary capacity. The power of temporary designation extends only to offices in the executive branch whose appointment is vested in the President or the Executive Board by law.² The Batch Legislator, however, belongs to the legislative branch, as specifically provided under Article XI, Sections 103 and 104 of the USG Constitution –

"Section 103. The Legislative Assembly, which shall hereinafter be referred to as LA, shall be the highest law-making body of the USG. Legislative power shall be vested in the LA, except to the extent reserved to the people by the provisions on initiative and referendum."

Section 104. The LA shall be composed of all College and Batch Legislators, who shall elect among themselves the Chief Legislator. x x x (underscoring supplied)."

Furthermore, while the College Government Code provides for an acting College President and an acting Batch Representative, it provides no counterpart for the Batch Legislator. The law therefore admits of no OIC, acting, or temporary Batch Legislator. A Batch Legislator may assume office only through election or through nomination by the College President and confirmation by the LA after the conclusion of the Special Elections. Gallegos was neither



elected to nor confirmed by the LA as BLAZE2028 Batch Legislator. His entry into the DLSU USG Officers Database 2026–2027 as such was therefore without legal basis.

The Resolution

The aforementioned acts, if proven, constitute Behavior that Undermines the Integrity of the USG, which pertains to the specific charge of Usurpation of Official Function² under the provisions of the 2026 Omnibus Code of Violations.

This serves as a notice of investigation into the alleged acts herein. Each of the Respondents is compelled to submit a reply within three (3) working days in response to the charges laid above pursuant to Section 2.2, Article V of the Ombudsman Act.

Failure to submit a reply and any evidence that disproves the allegations herein within the prescribed period shall be deemed as a waiver of the Respondents' right to submit controverting evidence, and the investigation shall proceed accordingly.

SO ORDERED.

05 October 2026, Manila City, Philippines

SGD.

HON. ANDREI MIGEL R. ALVIAR
Ombudsman

SGD.

HON. TISHA DENISE DOROSAN
Deputy Ombudsman



OFFICE OF THE OMBUDSMAN
University Student Government
De La Salle University

The Appendices



OFFICE OF THE OMBUDSMAN
University Student Government
De La Salle University

Appendix A :



DLSU Commission on Elections

August 3 · 🌐

🗳️ **Weeks of campaigning and voting later, the student body has now spoken!**

Lasallians, the votes have been tallied and it is with great pleasure that we present to you all the winners of General Elections 2026. As we journey into a new school year, we look forward to seeing their dedication in action and what the university's future will look like.

We thank everyone for actively participating, volunteering, and standing up for student democracy. The DLSU Commission on Elections is honored to stand for the right and fair choice, always. 🙌

Congratulations to our newest leaders and ANIMO LA SALLE! 🎉❤️

[#GeneralElections2026](#)

[#DLSUCOMELEC](#)

[#USGGeneralElections2026](#)

P&M-URG-COMELEC 0103 Series of AY 2025-2026 [See less](#)





OFFICE OF THE OMBUDSMAN
University Student Government
De La Salle University

Appendix C:

 **DLSU Commission on Elections and DLSU USG — with DLSU Laguna Campus St...** ...
6 days ago · 

First day of Certificate of Candidacy (COC) Filing Period

 Today marks the official beginning of the Cer... [See more](#)



SPECIAL ELECTIONS 2026

**FILING CERTIFICATE
OF CANDIDACY
STARTS TODAY!**

September 28, 2026 to October 23, 2026

Guidelines
animo.li/SE2026-COCGuidelines

Submission Form
animo.li/SE2026-COCPortal

 comelec@dlsu.edu.ph  facebook.com/dlsucomelec  [@dlsucomelec](https://www.instagram.com/dlsucomelec)  301 Bro Cannon Hall, DLSU-M

Appendix D:



OFFICE OF THE OMBUDSMAN
University Student Government
De La Salle University



UNIVERSITY STUDENT GOVERNMENT

September 29, 2026

To: **Ms. Mielson Nelle D. Miranda**
President, University Student Government

Mr. Christian Danielle D. Olegario
Chief Magistrate, University Student Government Judiciary

Ms. Aleia Sandra P. Silvestre
Chief Legislator, University Student Government Legislative Assembly

Ms. Maria Elisha Kaye B. Nazario
Executive Secretary, University Student Government

From: 
Cedric Alfonso R. Perez
16th RVRCOB College President, Business College Government

Re: Resignation Letter from RVRCOB College Assembly President

Greetings in St. La Salle!

I am writing to formally tender my **resignation** as the **RVRCOB College Assembly President**, effective immediately **September 29, 2026**.

This decision comes after careful consideration of my current academic responsibilities. I am now in my 10th term out of 11, which is also a particularly demanding period as I undertake my practicum and thesis proposal. Given these commitments, I have come to recognize that **I no longer have the capacity to give the Business College Government and the Ramon V. del Rosario - College of Business the time, attention, and commitment that the position deserves.**

With this in mind, I believe that stepping down at this point is the most responsible decision I can make for the organization and the students I have the privilege of serving. I remain deeply grateful for the trust given to me throughout my term as College Assembly President and for the opportunity to serve the RVRCOB community.

In line with this transition, I would like to recommend **Ms. Jan Aura Denise S. Dulce** to serve as **Officer-in-Charge for the Business College Government**. She previously served as BLAZE2027 Batch Vice President (A.Y. 2024–2025) and BCG Deputy Chief Operating Officer (A.Y. 2025–2026). I believe



UNIVERSITY STUDENT GOVERNMENT

that she is more than ready and capable to take on the responsibilities of the position, not only because of her capabilities and experience, but also because I have personally seen her genuine heart for service and her willingness to take proactive action for the RVRCOB community.

I am committed to ensuring a proper and orderly transition and will do my best to turn over the necessary responsibilities, documents, and institutional knowledge to ensure continuity in the College Government.

Thank you for the trust, support, and opportunity to serve the Ramon V. del Rosario - College of Business. It has been an honor to serve the community and contribute to the organization that has given me so much throughout my time in DLSU.

For one last time,

For an Involved RVRCOB we built together.

Cedric Alfonso R. Perez
RVR-COB College Assembly President
Business College Government
De La Salle University